



2025:AHC:204310-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 40037 of 2025

Munnu Lal

.....Petitioner(s)

Versus

State Of Uttar Pradesh And 4 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Gaurav Srivastava, Hari Ashok Kumar, Saurabh Raj Srivastava
Counsel for Respondent(s)	: C.S.C., Narendra Kumar Tiwari

Court No. - 40

**HON'BLE SARAL SRIVASTAVA, J.
HON'BLE SUDHANSHU CHAUHAN, J.**

1. Heard learned counsel for the petitioner and Sri Narendra Kumar Tiwari, learned counsel for the respondents.
2. The petitioner being aggrieved by the order dated 08.08.2025 whereby the application of the petitioner for grant of electricity connection has been rejected by the Executive Engineer, Power Corporation/Electricity Urban Distribution Division, Prayagraj has preferred the present writ petition.
3. It is contended by the learned counsel for the petitioner that the petitioner alongwith application for grant of electricity connection has enclosed all the documents which includes the document of ownership, and therefore, finding recorded by the Executive Engineer that petitioner did not file the document of ownership is perverse and against the record.
4. A preliminary objection has been raised by the learned counsel for the respondents that against the impugned order, there is statutory remedy of appeal under Clause 7.7.6 of U.P. Electricity Supply Code, 2005. It is submitted that the issue involved in the present case as to whether petitioner has supplied the document of ownership or not requires determination of facts which can only be done on the basis of evidence on record, therefore, this Court may not entertain the present petition under Article 226 of the Constitution of India, and relegate the petitioner to the Competent Authority under Clause 7.7.6 of U.P. Electricity Supply Code, 2005.
5. Be that as it may, the issue as to whether petitioner has filed document of

ownership besides other documents alongwith application is a question of fact which can very well be looked into by the Competent Authority under Clause 7.7.6 of U.P. Electricity Supply Code, 2005, therefore, this Court is not inclined to entertain the present petition under Article 226 of the Constitution of India.

6. Consequently, we ***dismiss*** the writ petition on the ground of alternative remedy.

7. However, it is provided that in case petitioner prefers any representation under Clause 7.7.6 of U.P. Electricity Supply Code, 2005 before the Competent Authority within a period of two weeks from today, the Competent Authority shall consider and decide the same expeditiously, preferably within a period of two weeks from the date the representation has been filed before him.

November 17, 2025
Sattyarth

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)